

2. 9:00 AM CASE NUMBER: MSC20-02307

CASE NAME: MCNEAL VS LIBERTY MUTUAL GROUP

HEARING ON ORDER TO SHOW CAUSE IN RE:

FILED BY:

TENTATIVE RULING:

The Court reviewed Plaintiff Linton McNeil's Declaration in Response to the Court's Order to Show cause. Defendant Kurita Jamison Pratt did not file a response. The parties are ordered to appear via Zoom or in person at 9:00 a.m. on March 18, 2026 in Department 16 for a Jury Trial Setting Conference.

3. 9:00 AM CASE NUMBER: C24-00146

CASE NAME: IFE RAMIREZ VS. ANNA HAYTER

HEARING ON ORDER TO SHOW CAUSE IN RE: WHY ATTORNEY K.AGU SHOULD NOT BE HELD IN CONTEMPT FOR FAILURE TO APPEAR 9/22/2025 AND 1/22/2025 TO PROSECUTE THIS CASE

FILED BY:

TENTATIVE RULING:

Having reviewed the Declaration of Counsel Kenechi R. Agu in response to the Court's Order to Show Cause, the Court hereby **discharges** this OSC. No appearance is required at the March 18, 2026 hearing.

4. 9:00 AM CASE NUMBER: C22-01727

CASE NAME: ROBERT RODRIGUEZ VS. BARRET BURKETT

HEARING ON ORDER TO SHOW CAUSE IN RE: WHY CASE SHOULD NOT BE DISMISSED FOR FAILURE TO APPEAR BY ROBERT D. RODRIGUEZ AT 1/16/2026 CMC.

FILED BY:

TENTATIVE RULING:

Having reviewed the Declaration of Robert D. Rodriguez in response to the Court's Order to Show Cause, the Court hereby **discharges** this OSC. No appearance is required in Department 16 on March 18, 2026 for this Order to Show Cause.

The Court notes that the parties are calendared for a hearing on a discovery motion before Commissioner Yamamoto at 10:30 a.m. in Department 57. Unless ordered otherwise by Commissioner Yamamoto, the parties are ordered to appear at the discovery motion at 10:30 a.m. in Department 57.

Law & Motion

5. 9:00 AM CASE NUMBER: C22-01563

CASE NAME: CATHERINE ANGWIN GASCA VS. CITY OF BRENTWOOD

HEARING ON SUMMARY MOTION

FILED BY: CITY OF BRENTWOOD

TENTATIVE RULING:

Continued by the Court, *sua sponte*, to April 29, 2026. The Court has several documents from Plaintiff in opposing this motion, but it cannot find a copy of the opposition memorandum. It appears

that Plaintiff may have served an opposition memorandum, but failed to file it. Plaintiff shall file and serve their opposition memorandum, along with a proof of service showing when it was served on Defendant by March 25, 2026. The Court will consider Plaintiff's opposition memorandum if it was timely served on Defendant. No further briefing is needed. No appearance is required at the hearing on March 18, 2026.

6. 9:00 AM CASE NUMBER: C23-02906

CASE NAME: KATELYN SCHAEFER VS. BRYAN DOVE

***HEARING ON MOTION IN RE: ENFORCE CROSS-DEFENDANT ROGER BOAZ'S COMPLIANCE WITH SETTLEMENT AND RELEASE AGREEMENT**

FILED BY: DOVE, BRYAN

TENTATIVE RULING:

Summary

Defendant and Cross-Complainant Bryan Dove's ("Dove") Motion to Enforce Cross-Defendant Roger Boaz's ("Boaz") Compliance with Settlement and Release Agreement is **granted** as set forth herein.

Background

This case presents a complex history of procedural actions taken by Defendant Dove and Cross-Defendant Boaz. In summary, in this litigation, Plaintiff Katelyn Schaefer ("Plaintiff"), who was 16 years old at the time, attended a party on May 26, 2023 at the residence of Dove and David Dove in Discovery Bay, California. Plaintiff alleged that Defendants served alcohol to minors. The complaint further alleged that Defendants provided Katelyn Schaefer with multiple alcoholic drinks, to the point of severe intoxication. As a result, Katelyn Schaefer suffered a fall, hit her head, sustained a cut above her left eyebrow, and lost consciousness. Subsequently as a result of her injuries, Katelyn Schaefer was transported by helicopter ambulance to a trauma center. Ms. Schaefer was treated and was ultimately diagnosed with alcoholic intoxication, concussion with loss of consciousness, laceration of left eyebrow, and acute hypokalemia. Ms. Schaefer's blood alcohol content was .225 g/dl.

Dove filed a cross-complaint against Boaz on March 18, 2024. The record indicates that Boaz evaded service and Dove filed service by publication. On July 21, 2024, Boaz made an appearance through Notice and Acknowledgement of Receipt of Summons and Cross-Complaint, but failed to reply to the cross-complaint. Dove entered a default against Boaz on September 5, 2024. On October 23, 2024, the Court conditionally set aside the default against Boaz. Boaz filed an amended cross-complaint against Dove. The case became at issue after resolution of a series of procedural skirmishes regarding the operative pleadings. In the intervening period, the parties arrived at a settlement agreement with Plaintiff on October 9 2025.

Dove contends that on October 9, 2025, the Parties attended mediation with mediator Chris Appleton. (Appleton Decl. ¶ 2.) As a result of the mediation, the Parties agreed to the following terms, which was articulated in writing following the mediation:

- (i) Mr. Dove's [insurance] carrier will pay Plaintiff a certain amount to resolve all claims or prospective claims against all persons including, but not limited to, Mr. Dove and Cross-Defendant;
- (ii) Plaintiff will dismiss with prejudice, any and all claims arising from the events of May